

25LBCV02089 25LBCV02089

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-08-27

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1. Parties'

Positions

Defendant propounded RPDs, FROGs, SROGs, and RFAs on Plaintiff on 3/20/26. As of the filing of the moving papers, on 7/02/26, and despite a meet and confer letter on 6/22/26, Plaintiff had not served responses. Defendant therefore filed these motions to compel responses to the RPDs, FROGs, and SROGs and to deem RFAs admitted.

Plaintiff opposes the motion. Plaintiff's attorney declares the meet and confer efforts were insufficient and "further" responses have been served, with verifications to come prior to the hearing.

2. Initial

not Further

Plaintiff's opposition papers

continually refer to the standards relating to motions to compel further, as opposed to initial, responses.

Defendant's moving papers establish Plaintiff never served any responses at all to the subject discovery. Despite

Plaintiff referring to his responses as "further" responses, he does not attach the responses and his attorney does not declare that initial responses were ever served. The Court will therefore

treat these motions as initial, not further, motions to compel. Notably, there is no meet and confer requirement when filing a motion to compel initial responses and/or a motion to deem RFAs admitted. Plaintiff's arguments re: the insufficiency of the meet and confer process are therefore rejected.

3. Substantive Responses

To the extent verified responses are not served prior to the hearing, the motions to compel will be granted and the RFAs will be deemed admitted. If responses are served, the motions will be deemed substantively moot. If the parties submit on the tentative, the motions will be deemed substantively moot.

4. Sanctions

Defendant's notice of motion indicates Defendant seeks imposition of sanctions against Plaintiff and his law firm in the amount of its fees and costs incurred in connection with the motion. Defense Counsel declares fees in the amount of \$1720 per motion have been or will be incurred in connection with the motion. Plaintiff argues sanctions should not be imposed because Plaintiff acted with good cause or substantial justification. CCP §§2030.290(c), 2031.300(c). Plaintiff relies on *Foothill Properties v. Lyon/Copley Corona Associates* (1996) 46 Cal.App.4th 1542, 1557-58, *Doe v. U.S. Swimming, Inc.* (2011) 200 Cal.App.4th 1424, 1434, and *Do v. Superior Court* (2003) 109 Cal.App.4th 1210, 1213 to support her position.

The Court has previously addressed these arguments, which are repeatedly made by Plaintiff's law firm, and has rejected them. Plaintiff persists in making the arguments. The Court admonishes Plaintiff's attorneys that continuing to make these specious arguments in the future could expose Plaintiff to additional sanctions and/or discipline.

In *Lyon*, the court of appeals reversed a sanctions order, finding that a party's refusal to turn over discovery documents until after a hearing on a motion for a protective order was substantially justified and made in good faith. In *Doe*, the court of appeals affirmed a trial court's imposition of sanctions where the defendant persisted in insisting the trial court must review the documents in camera before they would be produced,

despite the trial court's admonishment that it would not do so. In Do, the issue was whether an indigent client represented by a pro bono attorney was entitled to fees or not.

Plaintiff's interpretation of the sanctions statute would turn the statute on its head. Defendant propounded discovery, and Plaintiff failed to timely respond due to problems with the meet and confer process, which was not even required. The Court therefore finds imposition of sanctions appropriate.

Defense Counsel declares he bills at the rate of \$415/hour. The Court awards one hour to prepare each form discovery motion. The Court awards one hour to prepare reply papers and one hour to appear at the hearing. The Court therefore awards a total of six hours of attorney time at the rate of \$415/hour, or \$2490 in fees. The Court awards a \$60 filing fee in connection with each motion, or \$240 in costs.

Sanctions are sought and imposed against Plaintiff and his attorney of record, jointly and severally. They are ordered to pay sanctions to Defendant, by and through its attorney of record, in the total amount of \$2730, within twenty days.

Defendant is ordered to give notice.